

CV-25-004154 GARRETTSTEINMAN, DANIEL PAUL vs SIERRA CLUB – a) Defendant’s Motion to Compel Further Responses to Defendants’ Request for Admissions, Set No. One – HEARING REQUIRED; b) Defendant's Motion to Compel Further Responses to Defendants’ Form Interrogatories, Set No. Two – HEARING REQUIRED; c) Defendant’s Motion to Compel Further Production of Documents – HEARING REQUIRED; d) Defendant’s Motion to Compel Further Responses to Defendants’ Special Interrogatories, Set. No. One - HEARING REQUIRED.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: Discovery is supposed to be self-executing, and the parties appeared much closer on the issues than it appears in the filings. This is complicated by the late filing under unusual circumstances not clearly covered by the case law. I have tentative views on the threshold matter of whether I have jurisdiction. While failure to pay is normally dispositive, the procedural posture of the case is not usual and forfeiture of the information appears unduly harsh. If I have jurisdiction, or discretion to find jurisdiction, I intend to go forward on the motions. However, it appears to the Court that Defendant has conceded overbreadth in the requests. If I reach the merits, here are the likely rulings: RFA's: RFA's 5 and 6 appear sufficiently answered. RFA 7 needs a further response. RFA 8 is properly objected to for ambiguity. RFA 9 has a sufficient answer. RFA's 10 and 11 are sufficiently answered. Form Interrogatories Set Two: Form Interrogatory 17.1 subparts (b) and (d) require further response. If specific medical or privileged content would be responsive, asserting that privilege over specific content is warranted. Production of documents: All responses will be limited to October 2020 to December 2022. Item number 2, the Gualala declaration, will be compelled. Items 4-7 appear to include items now in Plaintiff's possession, and they should be produced. Special Interrogatories, Set One: All interrogatories will be time-limited to the above dates. Special Interrogatory 18 requires a further response. Various witness identification issues should be answered. Sanctions: Although Plaintiff has failed to answer some discovery he should have answered, the lateness of the filing (and, perhaps, in-court efforts to reach resolutions) leave the Court deeply disinclined to issue any sanctions at all. The following are the tentative rulings for cases calendared before Judge Stacy P. Speiller in Department 22:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

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Special Interrogatories, Set One:

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Sanctions:

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